Syllabus

FERNANDEZ *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 24–556. Argued November 12, 2025—Decided May 28, 2026

Joe Fernandez was indicted in 2013 for his role in the assassination of two gang members. The prosecution's theory was that members of a drug ring had paid Fernandez to act as the backup shooter, and when the primary shooter's gun jammed, Fernandez fired 14 rounds and killed both victims. Fernandez's alleged co-conspirator, Patrick Darge, testified against Fernandez at trial. The jury convicted Fernandez of murder for hire and a firearms offense, and the District Court imposed two consecutive life sentences.

Fernandez pursued multiple avenues of relief. He first asked the District Court to reconsider, alleging *Brady* violations related to the Government's failure to disclose that another alleged co-conspirator, Luis Rivera, had denied driving the getaway car. The District Court reviewed the Government's notes from interviewing Rivera and concluded that they did not contain relevant information, though the judge noted he was "troubled" by the Government's lenient treatment of Rivera. The Second Circuit affirmed the conviction and sentence, rejecting both the *Brady* claim and Fernandez's insufficiency-of-evidence argument. It held that a reasonable jury could credit Darge's testimony and that the evidence was sufficient to support conviction. Fernandez then twice moved for postconviction relief under 28 U. S. C. § 2255. The first motion, arguing actual innocence based on witness credibility, was described by the Second Circuit as "plainly meritless." The second succeeded only in vacating his firearms conviction based on *United States* v. *Davis*, 588 U. S. 445, thus leaving in place Fernandez's murder-for-hire conviction. In the order vacating the firearms conviction, the District Judge speculated that the Government had offered Rivera a lenient plea deal because it "kn[ew] something" inconsistent with Darge's testimony, and pointedly noted that if Fernandez's life sentence on the murder-for-hire charge "were to be commuted, or held unlawful, [Fernandez] would be released immediately." 569 F. Supp. 3d 169, 174, n. 4, 179.

Fernandez finally filed a motion for compassionate release under 18 U. S. C. § 3582(c)(1)(A)(i), arguing that extraordinary and compelling reasons—above all, that he was innocent—warranted a sentencing reduction. The District Court granted the motion, citing unease about

Page Proof Pending Publication

Syllabus

whether Darge's testimony had been truthful, concerns about the Government's charging decisions, and doubts about the correctness of the jury's verdict. The Second Circuit reversed, holding that challenges to the validity of a conviction are not cognizable as "extraordinary and compelling reasons" under § 3582(c)(1)(A). Seven circuits agree with the Second Circuit on that legal issue, while two circuits take the other side.

Held: A prisoner who collaterally attacks the validity of his conviction must proceed through 28 U. S. C. § 2255, not 18 U. S. C. § 3582; the supposed invalidity of a conviction is not among the "extraordinary and compelling reasons" that justify compassionate release. Pp. 419–430.

(a) Section 2255 governs collateral attacks on federal convictions and imposes tight procedural constraints, including: a 1-year statute of limitations, § 2255(f); a general rule that prisoners get only one shot at collateral relief with narrow exceptions, §§ 2255(h)(1)–(2); a bar on relitigating claims already raised and rejected on direct review, see *Kaufman* v. *United States*, 394 U. S. 217, 227, n. 8; and procedural default rules requiring demonstration of "'cause'" and "'prejudice'" or actual innocence for claims *not* raised on direct review, *Bousley* v. *United States*, 523 U. S. 614, 622. This case arises because after Fernandez lost a challenge to his conviction under § 2255, he filed a motion presenting similar arguments under 18 U. S. C. § 3582, which permits prisoners to seek compassionate release from prison by showing "extraordinary and compelling reasons" warrant early release. Unlike the procedural constraints on § 2255 claims, the sole procedural requirement imposed by § 3582 is that the prisoner must first present his request to the Bureau of Prisons.

Page Proof Pending Publication

The Court's precedents establish that claims "close to the core of habeas corpus" must be brought under "the specific federal habeas corpus statute" prescribed for relief, *Preiser* v. *Rodriguez*, 411 U. S. 475, 489, and other statutes "must be read in harmony" with the habeas framework, *District Attorney's Office for Third Judicial Dist.* v. *Osborne*, 557 U. S. 52, 66. In *Preiser*, the Court held that even though prisoners' claims "came within the literal terms" of 42 U. S. C. § 1983, Congress's determination "that habeas corpus is the appropriate remedy for state prisoners attacking the validity of the fact or length of their confinement" "must override the general terms of § 1983." 411 U. S., at 490. A contrary result would allow prisoners to evade the rigorous requirements of postconviction relief and "wholly frustrate explicit congressional intent." *Id.*, at 489. In *Gonzalez* v. *Crosby*, 545 U. S. 524, the Court held that prisoners may not use Federal Rule of Civil Procedure 60(b) to argue that a denial of habeas relief was wrong on the merits,

because allowing such motions would permit movants to "circumvent" the strict statutory habeas standards.

Applying these principles, challenging the validity of a conviction through a compassionate release motion circumvents the exacting requirements of § 2255. Fernandez candidly admits that avoiding § 2255's procedural and substantive requirements is the benefit of his approach. His strategy would enable prisoners to bypass § 2255 by challenging convictions repeatedly, for years after they became final, and regardless whether the issues had already been raised or decided in prior proceedings.

The text and structure of § 3582 confirm that the invalidity of a conviction is not among the "extraordinary and compelling reasons" justifying compassionate release. "Extraordinary" means "most unusual," "far from common," and "having little or no precedent," Webster's Third New International Dictionary 807, while "compelling" means "tending to convince or convert by or as if by forcefulness of evidence," *id.*, at 463. An argument that is compelling in one context is not necessarily so in another, and a reason is not "compelling" if Congress has channeled it through the postconviction statutes. The name for § 3582(c)(1)(A)—"Compassionate Release"—highlights its focus on granting mercy rather than righting legal wrongs. Congress gives special protection to defendants with "terminal illness," § 3582(d); expressly identifies that relief is available for elderly prisoners who have served lengthy sentences and are not dangerous, § 3582(c)(1)(A)(ii); and has permitted the Sentencing Commission to treat rehabilitation as a relevant consideration, 28 U. S. C. § 994(t). The role of the Bureau of Prisons reflects the statute's focus on a defendant's personal circumstances such as advanced age, safety risk, illness, and rehabilitation. The Bureau's institutional expertise lies in the daily lives of prisoners, so it makes little sense to have the Bureau evaluate legal arguments and comb trial records to determine whether a prisoner has a "compelling" argument that his conviction was wrongful. Regulatory history points the same way. For decades, the Sentencing Commission has tied the availability of compassionate release to a defendant's personal circumstances and has *never* said that the invalidity of a conviction can be an "extraordinary and compelling reaso[n] warrant[ing]" compassionate release. Pp. 419–427.

(b) Fernandez's argument that § 2255 and § 3582 offer different forms of relief does not help him. The difference in relief highlights the mismatch between the error he alleges and the remedy he seeks. When a prisoner persuades a court that his conviction is invalid, the remedy of a little less prison time does not redress the wrong. If a conviction is invalid, the fitting remedy is to vacate it, as § 2255 allows. Whether a prisoner's request for relief serves as a challenge to a conviction often

Public Domain. Digitized by Princeton

turns on the nature of the arguments presented. See, *e.g.*, *Gonzalez*, 545 U. S., at 531, 533. If a prisoner moves for relief because of alleged problems with the underlying criminal investigation or trial, his motion suggests that his conviction is flawed. This case demonstrates as much: The District Court found there was reason to question the verdict, meaning that it harbored doubts about the soundness of the conviction.

Fernandez's backup argument—that actual innocence claims must be cognizable under § 3582 because such claims have never been held to state a ground for federal habeas relief absent an independent constitutional violation—fails. No court has concluded Fernandez was actually innocent. In any event, a prisoner asserting actual innocence "challenge[s] the validity of his conviction," *Herrera* v. *Collins*, 506 U. S. 390, 406, and that lies "close to the core of habeas corpus," *Preiser*, 411 U. S., at 489. Section 3582 does not provide a shortcut around the postconviction statutes. Pp. 427–430.

104 F. 4th 420, affirmed.

BARRETT, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. SOTOMAYOR, J., filed an opinion concurring in the judgment, in which KAGAN, J., joined, *post*, p. 431. JACKSON, J., filed a dissenting opinion, *post*, p. 433.

Page Proof Pending Publication

Benjamin Gruenstein argued the cause for petitioner. With him on the briefs were *Antony L. Ryan* and *Scott B. Cohen*.

Deputy Solicitor General Feigin argued the cause for respondent. With him on the brief were *Solicitor General Sauer*, *Acting Assistant Attorney General Galeotti*, *Frederick Liu*, *Tyler Anne Lee*, and *Andrew C. Noll*.*

---

*Briefs of *amici curiae* urging reversal were filed for FAMM et al. by *Shelley Fite*, *Peter Goldberger*, *Joshua L. Dratel*, *Jessica Stengel*, *Daniel Habib*, *Judith H. Mizner*, *Renee Pietropaolo*, and *Erica Zunkel*; for Douglas Berman by *Vincent Levy*; and for Sen. Richard J. Durbin et al. by *Brent J. Gurney*, *David W. Ogden*, and *Daniel S. Volchok*. *Elizabeth B. Wydra* and *Brianne J. Gorod* filed a brief for the Constitutional Accountability Center as *amicus curiae* urging vacatur. Briefs of *amici curiae* urging vacatur and remand were filed for the New York Council of Defense Lawyers (NYCDL) by *Harry Sandick* and *Celeste L. M. Koeleveld*; and for Wolfgang Von Vader by *Sarah P. Hogarth*.

JUSTICE BARRETT delivered the opinion of the Court.

A federal statute authorizes district courts to shorten prison sentences for "extraordinary and compelling reasons"—most commonly, conditions like the prisoner's age and infirmity. 18 U. S. C. § 3582(c)(1)(A). Petitioner Joe Fernandez argues that doubts about a conviction's validity also qualify as "extraordinary and compelling" reasons for relief under the statute. We disagree. A prisoner who collaterally attacks the validity of his conviction must proceed through 28 U. S. C. § 2255, not 18 U. S. C. § 3582.

I

Fernandez was indicted in 2013 for his role in the assassination of two gang members. The prosecution's theory was that members of a drug ring had paid Fernandez $40,000 to act as the backup shooter. When the primary shooter's gun jammed, Fernandez stepped in. He fired 14 rounds, killing both victims.

Page Proof Pending Publication

Fernandez's cousin and alleged co-conspirator, Patrick Darge, testified against him at trial. To discredit Darge, Fernandez's counsel argued that Darge was framing Fernandez to protect the real second shooter, Darge's brother. Unconvinced, the jury convicted Fernandez of murder for hire and a firearms offense. See 18 U. S. C. §§ 924(j), 1958. The District Court then imposed two consecutive life sentences.

Fernandez asked the District Court to reconsider, alleging that the prosecution had violated *Brady* v. *Maryland*, 373 U. S. 83 (1963). He pressed that argument several times, first in a motion to vacate the verdict, then in a motion for new trial, and again in a motion for rehearing. According to Fernandez, the Government should have disclosed that another alleged co-conspirator, Luis Rivera, had denied driving the getaway car. To determine whether Rivera had in fact denied his involvement, the District Court reviewed the Government's notes from Rivera's interview; it concluded